

**Court No. - 32**

**Case :-** WRIT - C No. - 24101 of 2018

**Petitioner :-** Smt. Sushma Devi

**Respondent :-** State Of U.P. And 3 Others

**Counsel for Petitioner :-** A.K. Maurya I

**Counsel for Respondent :-** C.S.C.,Mahboob Ahmad

**Hon'ble Shashi Kant Gupta,J.**

**Hon'ble Rajiv Gupta,J.**

This writ petition, inter alia, has been filed for the following reliefs;

***"(I) To issue a writ, order or direction in the nature of Mandamus directing the respondent No. 3 & 4 to provide the prepaid electric connection to the petitioner forthwith."***

Heard learned counsel for the petitioner, Sri Mahboob Ahmad, learned counsel for the Electricity Department, learned Standing Counsel and perused the record.

A perusal of the order dated 23.6.2018 passed by Up Khand Adhikari, Respondent No. 4 shows that Up Khand Adhikari, Respondent No. 4 has refused the petitioner to grant electricity connection on the ground that there is a dispute regarding premises in question, as such, the electricity connection, as demanded by the petitioner, cannot be given to the alleged premises. However, in case if the petitioner is aggrieved by the order dated 23.6.2018, he has got an alternative remedy under Clause 7 (1) (3) of the Uttar Pradesh Electricity Supply Code, 2005 to ventilate his grievances before the concerned authority.

In view of the above, it is provided that in case if the petitioner files his representation/complaint under the said provision, it may be decided by the concerned authority as early as possible preferably within a period of 30 days from the date of filing of the representation/complaint.

With this observation, this petition stands disposed of.

**Order Date :-** 18.7.2018

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